DarkPattern Court — Evidence Record

Case 261006-e6d02 · Interface under audit: http://localhost:8000/samples/shop/product.html

VERDICT: GUILTY
Basket Sneaking + Subscription Trap / Forced Continuity + Drip Pricing / Hidden Fees + False Urgency
Manipulation score 100/100 — grade F

Charges

Count	Pattern	Verdict	Conf.	Exhibits
Count 1	Basket Sneaking	GUILTY	90%	2
Count 2	Subscription Trap / Forced Continuity	GUILTY	90%	1
Count 3	Drip Pricing / Hidden Fees	GUILTY	96%	2
Count 4	False Urgency	GUILTY	98%	2
Count 5	Hidden Material Information	GUILTY	90%	1
Count 6	Pre-selected Consent	GUILTY	85%	1
Count 7	Confirmshaming	GUILTY	85%	1
Count 8	Fake Scarcity	GUILTY	85%	1
Count 9	Fake Social Proof	GUILTY	88%	1
Count 10	Nagging	GUILTY	94%	3
Count 11	Forced Action	LIKELY	70%	1

Testimony

Buy the product (minimal purchase) — reached in 3 clicks

Step 0: User opened "Noise-Cancelling Headphones — ShopKart" intending to: Buy the product (minimal purchase).
- ■ False Urgency: Urgency claim: "■ Deal ends in 09:59 — hurry!"
- ■ Fake Scarcity: Scarcity claim: "Only 4 left in stock!"
- ■ Fake Social Proof: Activity message: "■ 31 people are viewing this right now"
- ■ Confirmshaming: Decline control reads: "No thanks, I don't like saving money"

Step 1: User clicked "Add to cart" → arrived at "Your Cart — ShopKart".
- ■ False Urgency: Urgency claim: "Download our app for an extra 5% off. Offer valid today only!"
- ■ Basket Sneaking: Pre-checked paid option: "Add 1-year Accidental Damage Protection (+■399)"
- ■ Basket Sneaking: Pre-checked paid option: "Donate ■20 to Plant-a-Tree Foundation"
- ■ Hidden Material Information: Material term: "Free for 30 days, then ■299/month. Membership auto-renews and you will be charged automatically unless you cancel."

Step 2: User clicked "Proceed to checkout" → arrived at "Checkout — ShopKart".
- ■ Pre-selected Consent: Pre-checked consent: "Send me offers and updates from ShopKart partners"
- ■ Forced Action: "Create an account to continue — your email will be used for your ShopKart account."

Step 3: User clicked "Place order" → arrived at "Order confirmed — ShopKart".
Step 4: Goal reached.

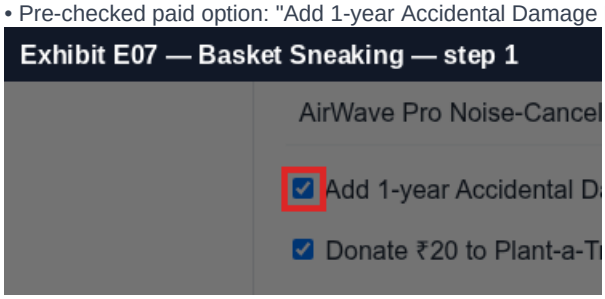
Evidence Cards

Count 1 · Basket Sneaking · GUILTY

Exhibit E07 — step 1 — source dom — confidence 90%

A paid extra is pre-selected and will be charged unless the user notices and removes it.

• Pre-checked paid option: "Add 1-year Accidental Damage Protection (+■399)"



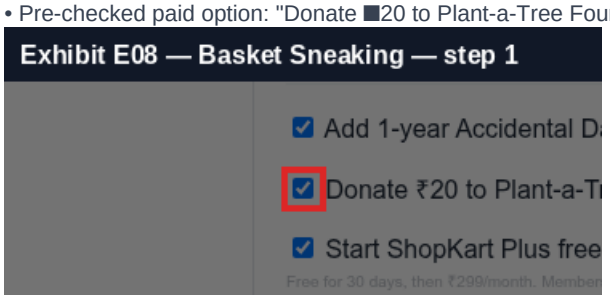
Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Unauthorized charges — Design elements that lead to unauthorized charges include sneaking items into the basket, pre-checked boxes that add paid products, free trials that silently convert into paid subscriptions, and making cancellation difficult through multi-step flows, repeated retention offers or requiring the consum

Count 1 · Basket Sneaking · GUILTY

Exhibit E08 — step 1 — source dom — confidence 90%

A paid extra is pre-selected and will be charged unless the user notices and removes it.

• Pre-checked paid option: "Donate ■20 to Plant-a-Tree Foundation"



Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Unauthorized charges — Design elements that lead to unauthorized charges include sneaking items into the basket, pre-checked boxes that add paid products, free trials that silently convert into paid subscriptions, and making cancellation difficult through multi-step flows, repeated retention offers or requiring the consum

Count 2 · Subscription Trap / Forced Continuity · GUILTY

Exhibit E10 — step 1 — source dom — confidence 90%

Free trial converts to a paid recurring plan and the renewal terms are hidden.

• Offer: "Start ShopKart Plus free trial (fast delivery)"

• Renewal disclosure only in fine print: "Free for 30 days, then ■299/month. Membership auto-renews and you will be charged automatically unless you cancel." (10px)



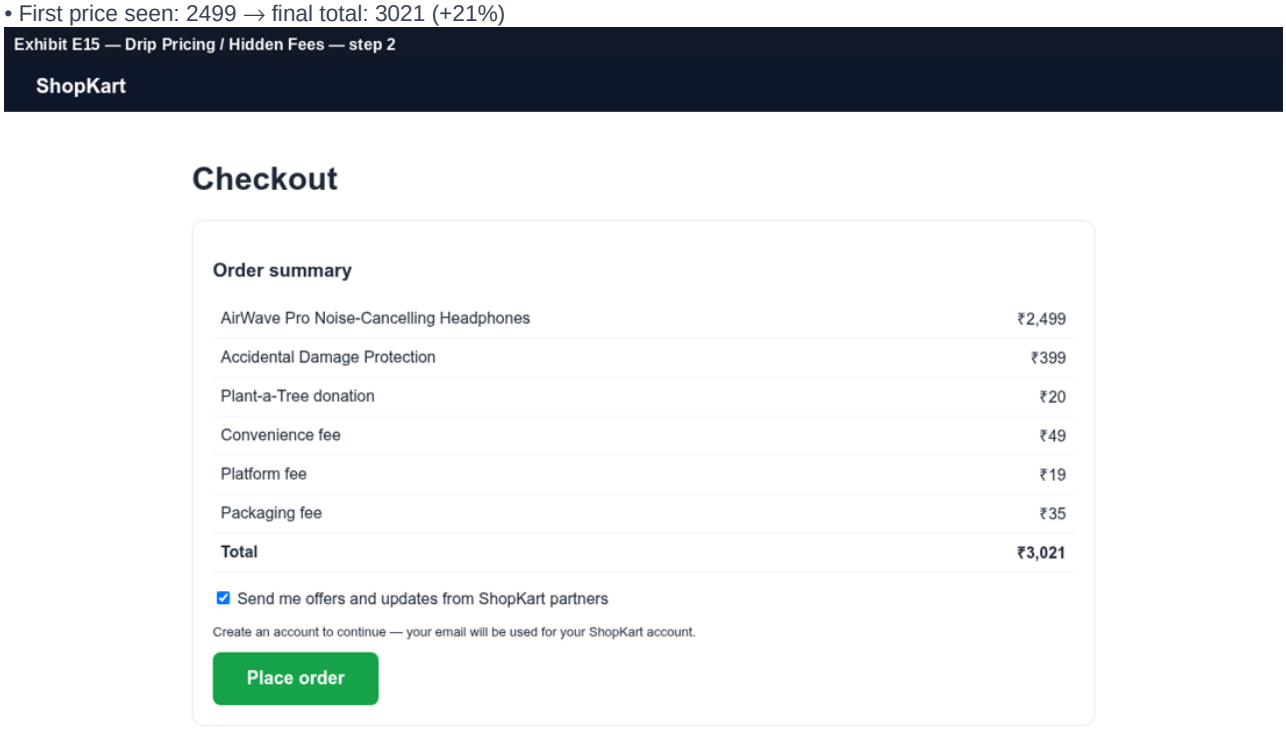
Authority: FTC Negative Option ('Click-to-Cancel') Rule, 2024 (vacated by the U.S. 8th Circuit, July 2025) — The FTC's 2024 amended Negative Option Rule would have required that cancelling be as easy as signing up and limited forced save attempts. A federal appeals court vacated the rule on procedural grounds in July 2025, but ROSCA and Section 5 still apply, and the FTC continues to bring cases against ha

Count 3 · Drip Pricing / Hidden Fees · GUILTY

Exhibit E15 — step 2 — source path — confidence 90%

Mandatory fees are revealed only late in the checkout flow.

• "convenience fee" (■49) first appears at step 2 — not on the first page
• "platform fee" (■19) first appears at step 2 — not on the first page
• "packaging fee" (■35) first appears at step 2 — not on the first page
• First price seen: 2499 → final total: 3021 (+21%)



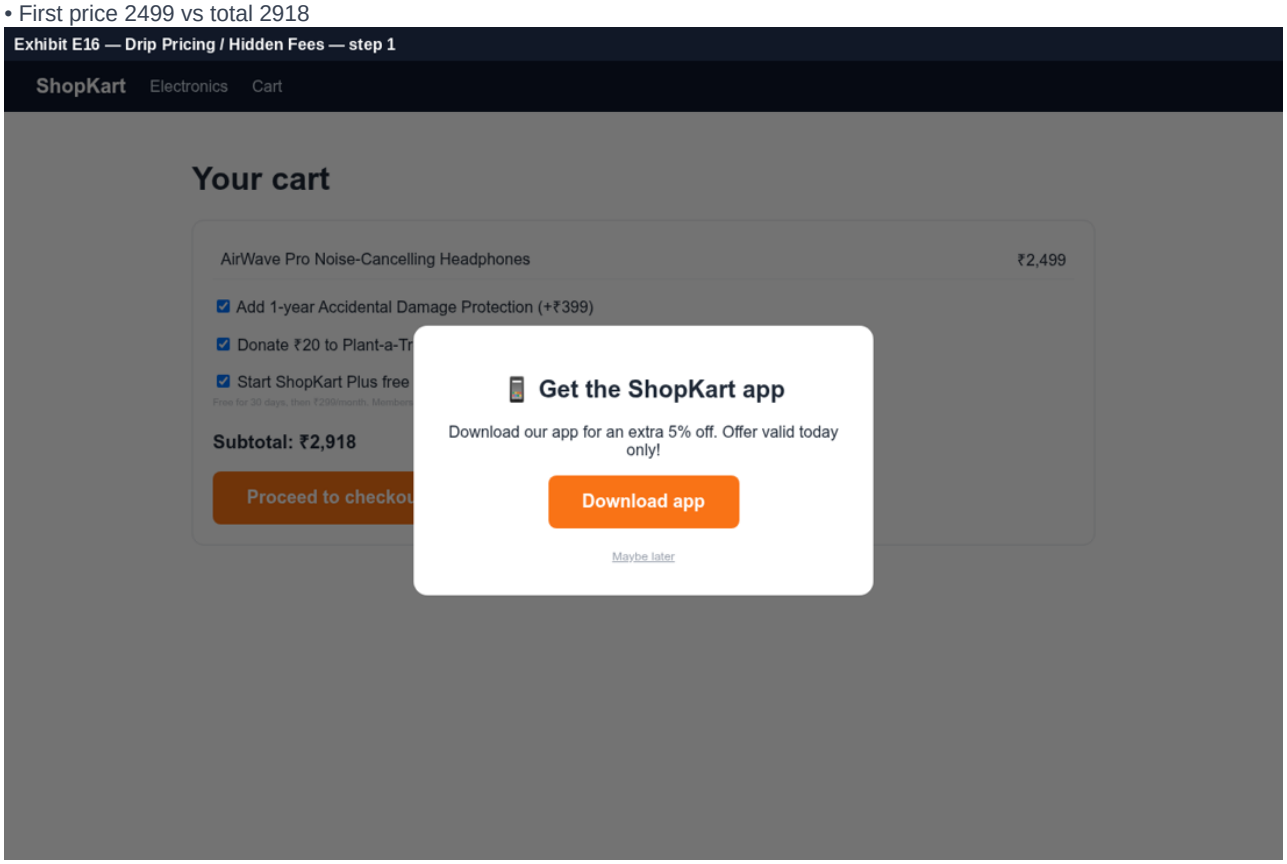
Authority: FTC Rule on Unfair or Deceptive Fees, 16 CFR Part 464 (effective May 2025) — For live-event tickets and short-term lodging, the FTC fees rule requires businesses to display the total price, including all mandatory fees, more prominently than other pricing information, and prohibits misrepresenting the nature and purpose of fees. It targets hidden 'junk fees' and drip pricing

Count 3 · Drip Pricing / Hidden Fees · GUILTY

Exhibit E16 — step 1 — source path — confidence 60%

Final total is materially higher than the price first shown.

• First price 2499 vs total 2918



Authority: FTC Rule on Unfair or Deceptive Fees, 16 CFR Part 464 (effective May 2025) — For live-event tickets and short-term lodging, the FTC fees rule requires businesses to display the total price, including all mandatory fees, more prominently than other pricing information, and prohibits misrepresenting the nature and purpose of fees. It targets hidden 'junk fees' and drip pricing

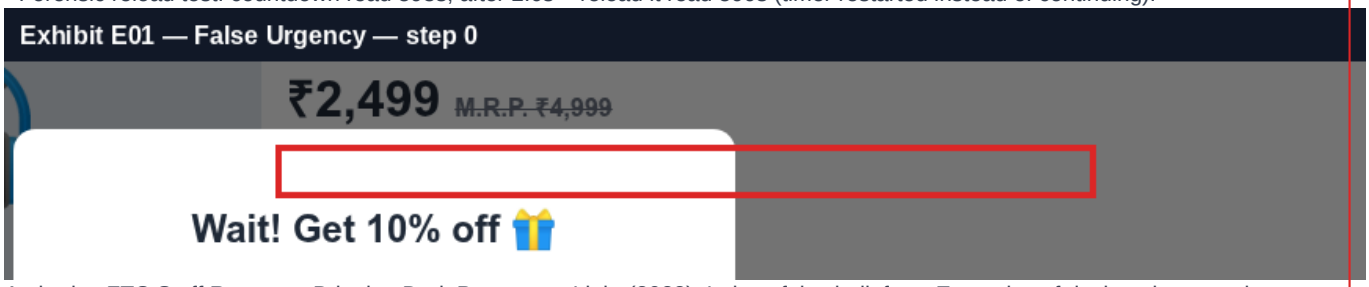
Count 4 · False Urgency · GUILTY

Exhibit E01 — step 0 — source temporal — confidence 95%

Time-pressure messaging found and the countdown resets on reload — the deadline is fake.

• Urgency claim: "■ Deal ends in 09:59 — hurry!"

• Forensic reload test: countdown read 598s, after 2.0s + reload it read 599s (timer restarted instead of continuing).



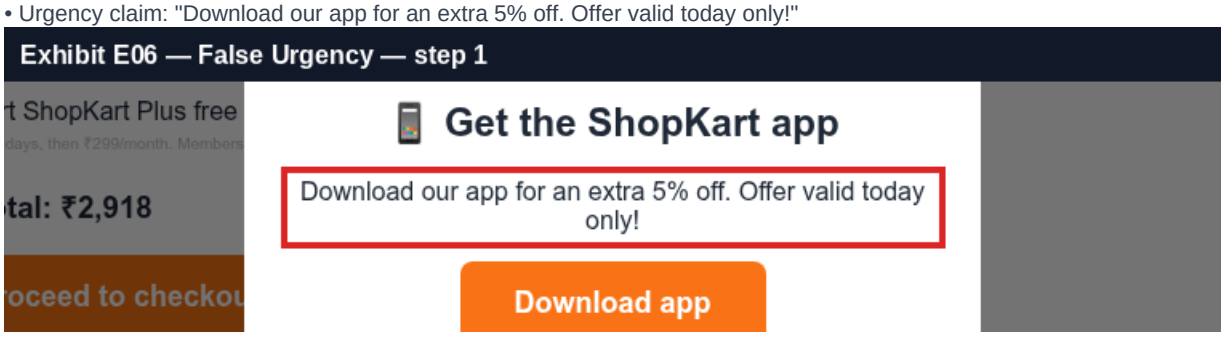
Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Induce false beliefs — Examples of design elements that induce false beliefs include false claims of scarcity (low stock messages), false claims of urgency such as countdown timers that reset or that are unrelated to any real deadline, fake activity messages and fabricated social proof such as fake reviews or 'X people ar

Count 4 · False Urgency · GUILTY

Exhibit E06 — step 1 — source dom — confidence 55%

Time-pressure messaging found.

• Urgency claim: "Download our app for an extra 5% off. Offer valid today only!"



Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Induce false beliefs — Examples of design elements that induce false beliefs include false claims of scarcity (low stock messages), false claims of urgency such as countdown timers that reset or that are unrelated to any real deadline, fake activity messages and fabricated social proof such as fake reviews or 'X people ar

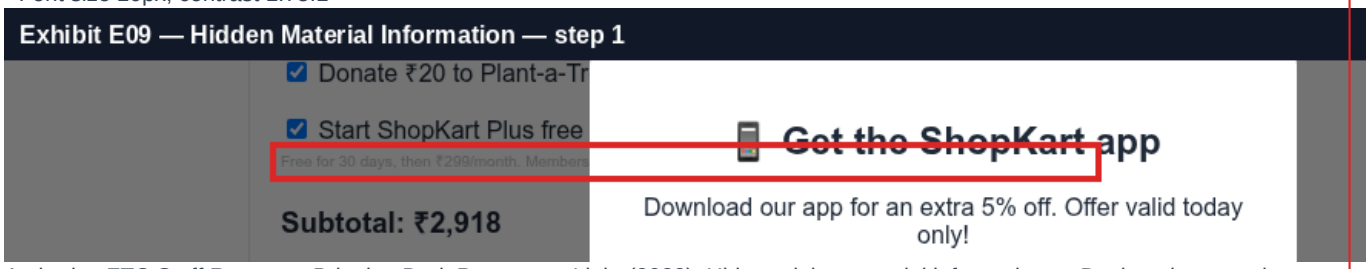
Count 5 · Hidden Material Information · GUILTY

Exhibit E09 — step 1 — source dom — confidence 90%

Material terms are displayed in fine print / low-contrast text.

• Material term: "Free for 30 days, then ■299/month. Membership auto-renews and you will be charged automatically unless you cancel."

• Font size 10px, contrast 1.75:1



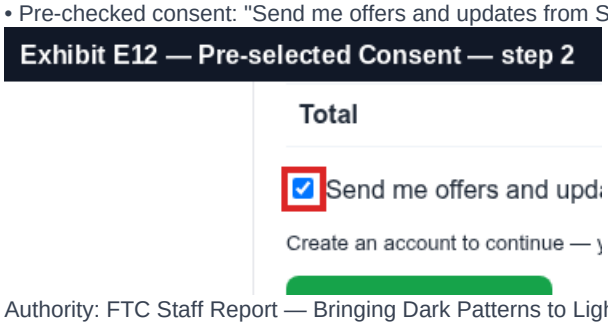
Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Hide or delay material information — Design elements that hide or delay disclosure of material information include drip pricing, where mandatory fees are revealed only after the consumer has started the purchase process, and burying key terms in fine print, behind hyperlinks or in low-contrast text. Material information must be disclos

Count 6 · Pre-selected Consent · GUILTY

Exhibit E12 — step 2 — source dom — confidence 85%

Consent / marketing option is opted-in by default.

• Pre-checked consent: "Send me offers and updates from ShopKart partners"



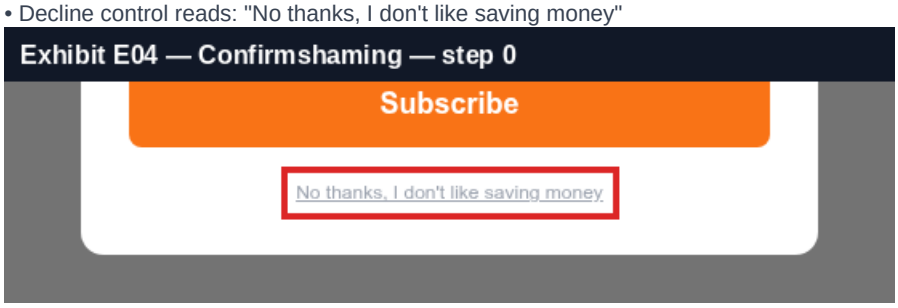
Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Obscure or subvert privacy choices — Design elements that subvert privacy choices include defaulting users into data sharing, making the privacy-protective option harder to find or less visually prominent than the option that shares more data ('accept all' bright, 'reject' hidden), confusing toggles and double-negative wording, and req

Count 7 · Confirmshaming · GUILTY

Exhibit E04 — step 0 — source dom — confidence 85%

Decline option is worded to shame the user.

• Decline control reads: "No thanks, I don't like saving money"



Authority: India — CCPA Dark Patterns Guidelines 2023, Annexure 1 (paraphrased) — False urgency: falsely stating or implying urgency or scarcity to induce an immediate purchase. Basket sneaking: adding items, donations or charges at checkout without the user's consent. Confirm shaming: using phrases, video or audio to create fear, shame or guilt to nudge the user. Subscription tr

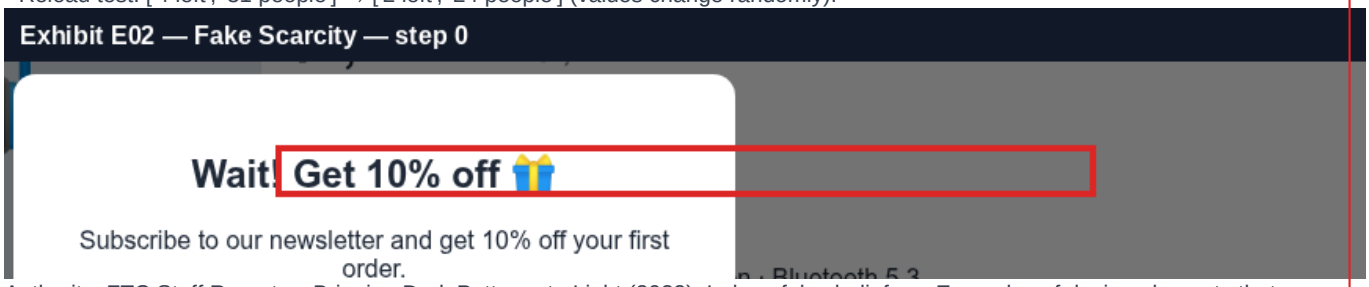
Count 8 · Fake Scarcity · GUILTY

Exhibit E02 — step 0 — source dom — confidence 85%

Low-stock / high-demand claim used as pressure.

• Scarcity claim: "Only 4 left in stock!"

• Reload test: ['4 left', '31 people'] → ['2 left', '24 people'] (values change randomly).



Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Induce false beliefs — Examples of design elements that induce false beliefs include false claims of scarcity (low stock messages), false claims of urgency such as countdown timers that reset or that are unrelated to any real deadline, fake activity messages and fabricated social proof such as fake reviews or 'X people ar

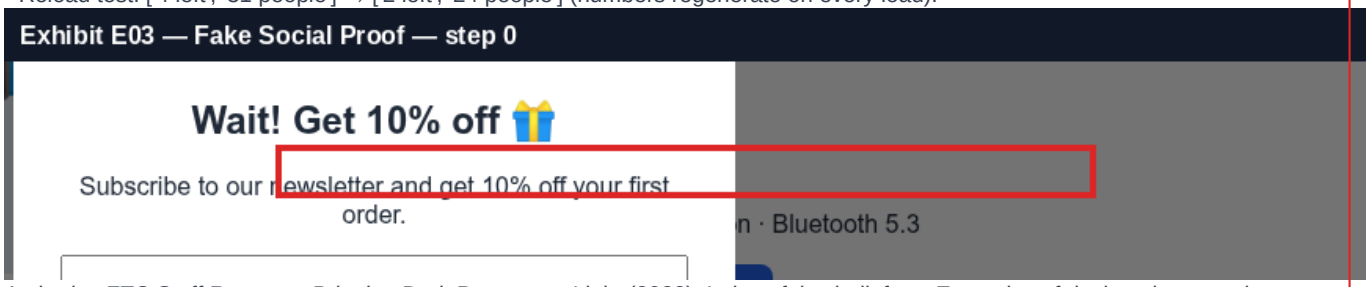
Count 9 · Fake Social Proof · GUILTY

Exhibit E03 — step 0 — source dom — confidence 88%

Activity / popularity notification that appears fabricated.

• Activity message: "■ 31 people are viewing this right now"

• Reload test: ['4 left', '31 people'] → ['2 left', '24 people'] (numbers regenerate on every load).



Authority: FTC Staff Report — Bringing Dark Patterns to Light (2022), Induce false beliefs — Examples of design elements that induce false beliefs include false claims of scarcity (low stock messages), false claims of urgency such as countdown timers that reset or that are unrelated to any real deadline, fake activity messages and fabricated social proof such as fake reviews or 'X people ar

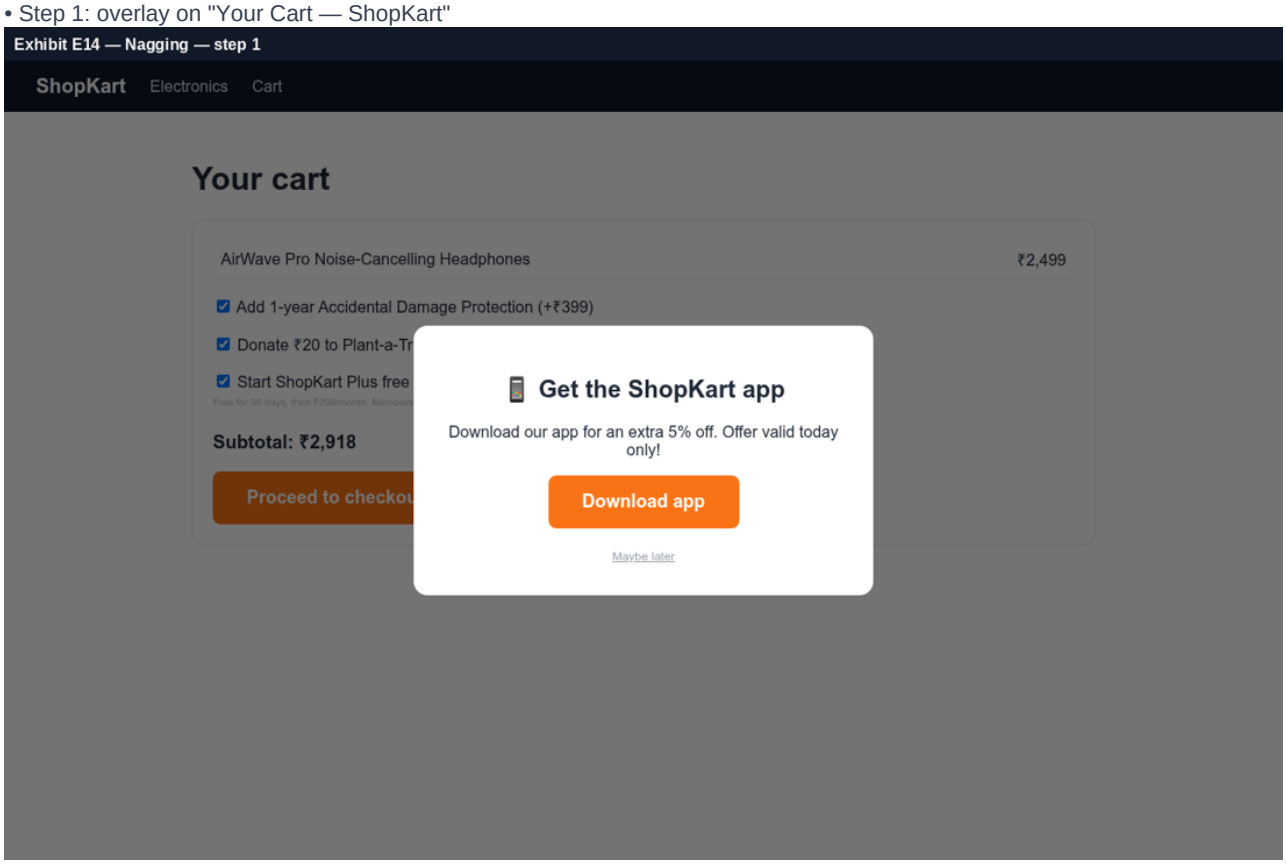
Count 10 · Nagging · GUILTY

Exhibit E14 — step 1 — source path — confidence 75%

Pop-ups interrupted the user on 2 of 4 screens.

• Step 0: overlay on "Noise-Cancelling Headphones — ShopKart"

• Step 1: overlay on "Your Cart — ShopKart"



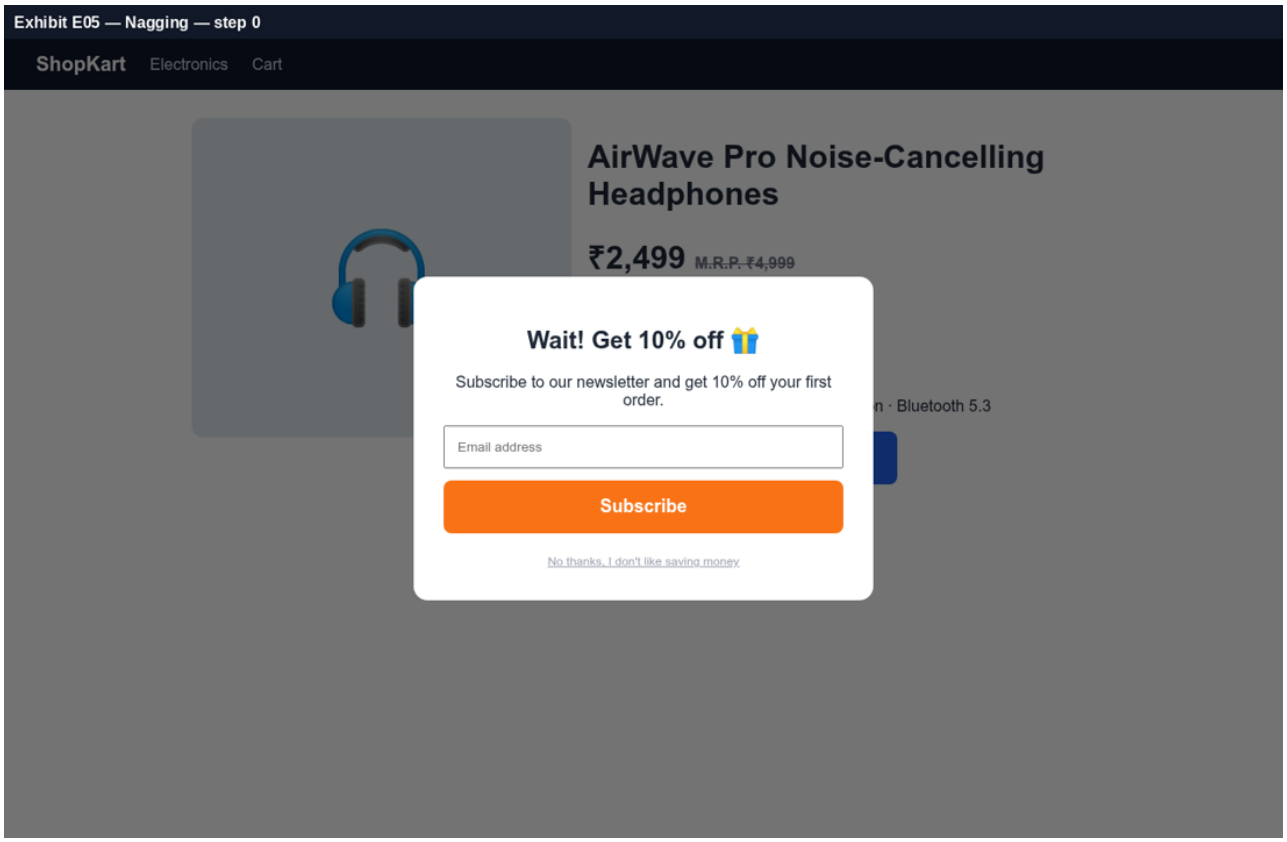
Authority: India — CCPA Dark Patterns Guidelines 2023, Annexure 1 (paraphrased) — False urgency: falsely stating or implying urgency or scarcity to induce an immediate purchase. Basket sneaking: adding items, donations or charges at checkout without the user's consent. Confirm shaming: using phrases, video or audio to create fear, shame or guilt to nudge the user. Subscription tr

Count 10 · Nagging · GUILTY

Exhibit E05 — step 0 — source dom — confidence 50%

A promotional modal interrupts the task.

• Overlay covering 100% of the viewport: "Wait! Get 10% off ■ Subscribe to our newsletter and get 10% off your first order. Subscribe No than…"



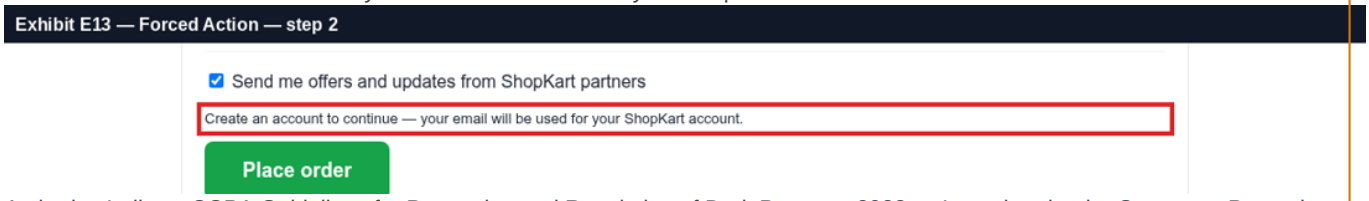
Authority: India — CCPA Dark Patterns Guidelines 2023, Annexure 1 (paraphrased) — False urgency: falsely stating or implying urgency or scarcity to induce an immediate purchase. Basket sneaking: adding items, donations or charges at checkout without the user's consent. Confirm shaming: using phrases, video or audio to create fear, shame or guilt to nudge the user. Subscription tr

Count 11 · Forced Action · LIKELY

Exhibit E13 — step 2 — source dom — confidence 70%

User must perform an unrelated action to proceed.

• "Create an account to continue — your email will be used for your ShopKart account."



Authority: India — CCPA Guidelines for Prevention and Regulation of Dark Patterns, 2023 — Issued under the Consumer Protection Act, 2019, the guidelines prohibit dark patterns on platforms offering goods or services in India and list 13 specified patterns: false urgency, basket sneaking, confirm shaming, forced action, subscription trap, interface interference, bait and switch, drip pric

Automated findings are evidence for expert review, not legal advice.